

Court No. - 29

Case :- WRIT - C No. - 45876 of 2016

Petitioner :- Govind

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Ashwani Kumar Mishra, Anil Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

The petitioner contends that he was served with the checking report dated 28.10.2015 when he visited the office of the Executive Engineer in January, 2016. It is further alleged that no notice was ever issued for filing objection to the checking report or to file any objection to the provisional assessment order.

Sri Baleshwar Chaturvedi, learned counsel for the respondent shall file a counter affidavit within a weeks.

List on 05.10.2016.

Order Date :- 22.9.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

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Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Two weeks further time is allowed to the respondents to file a counter affidavit.

List on 21st October 2016.

Order Date :- 5.10.2016

YK

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 35

Case :- WRIT - C No. - 45876 of 2016

Petitioner :- Govind

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Ashwani Kumar Mishra, Anil Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Bharati Sapru, J.

Hon'ble Siddharth, J.

List in the next cause list to enable the learned counsel for the respondent to file his counter affidavit.

Order Date :- 2.11.2017

pks

Court No. - 40

Case :- WRIT - C No. - 45876 of 2016

Petitioner :- Govind

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Ashwani Kumar Mishra,A.K.
Shukla,Anil Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Learned counsel for the respondents states that the counter affidavit has been prepared and shall be served on the learned counsel for the petitioner by tomorrow. Learned counsel for the petitioner may file a rejoinder to the same.

Let affidavits be exchanged. List in the next cause list.

Order Date :- 24.4.2018

KA

Court No. - 40

Case :- WRIT - C No. - 45876 of 2016

Petitioner :- Govind

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Ashwani Kumar Mishra,A.K. Shukla,Anil Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

A counter affidavit has been filed on behalf of the respondents today. Sri Mishra, learned counsel for the petitioner prays for an adjournment to give a reply to the same.

List in the next cause list.

Order Date :- 1.5.2018

M. ARIF

Court No. - 40

Case :- WRIT - C No. - 45876 of 2016

Petitioner :- Govind

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited
And Another

Counsel for Petitioner :- Ashwani Kumar Mishra,A.K.
Shukla,Anil Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

The petitioner has come up questioning the correctness of checking report contending that the report is false and not of the correct loads as to establish that the petitioner is consuming electricity or even otherwise. Thus there is denial of any claim by the respondent on the strength of such a checking report.

Counter affidavit has been filed supporting the checking report to which a rejoinder affidavit has been filed.

We have considered the submissions having raised by Sri A.N. Singh, holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondents. We find that it is a pure billing dispute arising out of a checking report.

In view of the aforesaid facts, we accordingly direct the petitioner to file an objection before the respondent no. 2 within ten days and in case such an objection is filed, it will be open to the second respondent to proceed to decide the same keeping the provisions of U.P. Electricity Supply Code, 2005 and the rules framed under within three weeks thereafter.

The writ petition is ***disposed off*** with the aforesaid directions.

Order Date :- 8.5.2018

Monika